

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 23, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Absent: Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Shanor, and pursuant to support received by Mr. Allen and Mr. Luna, Agenda Item #13 was removed from the Consent Agenda. Ms. Broyles moved to approve remaining Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on December 9, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Luna. Upon inquiry regarding a voucher payable to Labor Ready, Jim Elias, Public Works Director, provided information on use of temporary staffing services to provide coverage for solid waste sanitation services due to labor shortages. Mayor Kaysen advised the City provides the temporary laborers with some safety training and preparation for tasks to be provided. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as Election and Ideological Sign Amendments from 2013 Annual Review. Upon request by Mayor Kaysen, Dan White, City Attorney, explained the status of various document versions that have been involved with the ordinance, including a proposed substitute ordinance as recommended at the last Public Services Committee meeting. Expressing concerns with the current UDC sign provisions involving election and ideological signs were: Boyd Wiggam, Wyoming Liberty Group; Tim Kingston, local attorney; Robert Monger; Lynn Hutchings, State House Representative; M. Lee Hasenauer, Laramie County Commissioner, Thomas Hutchings, and Luke Smith. Topics presented included the following: Community and private property concerns; graffiti; temporary signs; sign message contents; freedom of speech; civil discourse; opposition to regulation; enforcement; potential future

changes involving sign regulations, and purpose of UDC sign regulations changes. Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Mr. Allen moved to amend by substitute ordinance, seconded by Mr. Shanor. Explanation was provided that the proposed substitute is more of a “content neutral” approach and is an attempt to address constitutional principles and community aesthetics. Speaking on the proposed substitute were: Mr. Hasenauer, Ms. Hutchings, Mr. Kingston, Mr. Hutchings, James Perrott Macneil, Albert Simpson, Mr. Wiggam and Buck Holmes, Laramie County Commissioner. During comments and upon inquiry, Mr. White provided information on an amendment to the ordinance that was approved on second reading pertaining to the size of signs in residential districts, and the proposed substitute which provides for an aggregate total square footage sign size per lot. Discussion followed and included topics relative to sign size in residential vs. non-residential districts; addressing constitutional concerns; applicable homeowners’ association restrictions; reasonable time, place and manner provisions, and whether signs may constitute a nuisance. During discussion and upon inquiry, Mr. White provided information on the petition process allowed by state statute to contest an approved ordinance. Motion to amend by substitute carried. Voting “yes” -- Mr. Allen, Ms. Broyles, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Voting “no” -- Mr. Brown, Mr. Cook and Mayor Kaysen. Dr. Rinne moved to amend the second sentence contained in Section 8 of the substitute by inserting the phrase “in Zone P” between the words “place” and “over”, seconded by Mr. Shanor. Comments were made that the proposed amendment would assist with special event signs on publicly zoned property, and that the proposed amendment wording may be better to insert following another amendment that would be offered. Motion to amend failed. Voting “yes” -- Ms. Broyles and Dr. Rinne. Voting “no” -- Mr. Allen, Mr. Brown, Mr. Cook, Mr. Luna, Mr. Shanor, Ms. Williams and Mayor Kaysen. Mr. Shanor, seconded by Mr. Allen, moved to amend the substitute ordinance as follows: (1) In Section 8, strike the second sentence as contained in UDC Section 6.5.4(b)(2)(h) and replace it with the following wording as a new section (6.5.4(d)) – “Any applicant that desires to place more temporary signs on its lot than allotted for elsewhere in this Section may do so for not more than two (2) periods of consecutive time, neither period to exceed twenty (20) days in length, per calendar year. During this period of time, unlimited signage is permitted on the lot. The applicant, prior to displaying the additional temporary signs pursuant to this paragraph, shall submit to the Development office the dates it is choosing to use for the twenty day period.”; (2) In Section 6, first bullet item, strike “Other than Neighborhood/District Identification Signs and change the word “parcels” to lots”; (3) In Section 6, first bullet item, strike “in a residential zoning district” at the end of the sentence, and (4) In Section 8, first sentence, change the word “site” to “lot”. Discussion on the proposed amendments followed and included concern with potential legal challenges, and the opportunity to make future UDC changes during the annual review process. Motion to amend carried. Voting “yes” -- Mr. Allen, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Voting “no” -- Mr. Brown, Ms. Broyles, Mr. Cook and Mayor Kaysen. Dr. Rinne, seconded by Mr. Shanor, moved to amend the first sentence in Section 6.5.4(d) by striking the words “on its lot” and inserting the phrase “in Zone P (Public) other” which would result in the sentence reading as follows: “Any applicant that desires to place more temporary signs in Zone P (Public) other than allotted for elsewhere in this Section may do so for not more than two (2) periods of consecutive time, neither period to exceed twenty (20) days in length, per calendar year.”. Expressing concern with the proposed amendment were Mr. Wiggam and Mr. Macneil. Motion to amend carried. Voting “yes” -- Mr. Allen, Ms. Broyles, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Voting “no” -- Mr. Brown, Mr. Cook and

Mayor Kaysen. Discussion followed on the main motion as amended (3 amendments) and included the following topics: Previously recommended ordinance wording as approved by staff and the City Attorney; origination of current UDC language; communications received from residents regarding signage, content and aesthetic concerns; constitutional concerns and issues; “content neutral” ordinance version; addressing additional concerns through future ordinance changes; enforcement; providing time for staff and City Attorney input on amendments that had been offered and approved at the current meeting, and freedom of speech. Ms. Broyles moved to postpone the item to January 13, 2014, seconded by Mr. Brown. Speaking on the motion to postpone were Mr. Simpson, commenting in opposition to postponement, and Mr. Hasenauer, requesting City Attorney response on whether the proposed ordinance, as amended, would meet constitutional compliance. Mayor Kaysen stated he would not request the City Attorney to express an opinion on constitutional compliance without the attorney having the opportunity to fully review. Motion to postpone failed. Voting “yes” -- Mr. Brown, Ms. Broyles and Mr. Cook. Voting “no” -- Mr. Allen, Mr. Luna, Dr. Rinne, Mr. Shanor, Ms. Williams and Mayor Kaysen. Following further discussion on the proposed ordinance as amended, main motion to approve on third and final reading failed (Clerk’s note: Main motion to approve an ordinance on final reading requires a minimum of 6 affirmative votes to pass). Voting “yes” -- Mr. Allen, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Voting “no” -- Mr. Brown, Ms. Broyles, Mr. Cook and Mayor Kaysen.

ORDINANCE - Authorizing the issuance by the City of Cheyenne, Wyoming, of a 2013 Refunding Revenue Water Note, in a maximum principal amount of \$8,740,000 and an interest rate of 2.41% and a maturity date of not to exceed December 1, 2025, for the purpose of advance refunding a portion of the refunding Revenue Water Bonds, Series 2007; prescribing the form of said 2013 note; providing for the payment of the 2013 note and the interest thereon; authorizing the execution and delivery by the City of the 2013 note, and the sale of such 2013 note to BOKF, NA d/b/a Colorado State Bank and Trust, a paying agent and registrar agreement, an escrow agreement, closing documents and any other documents necessary in connection therewith; ratifying certain action heretofore taken and providing other details in connection therewith. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Luna. Mr. Brown moved to amend by substitute, seconded by Ms. Broyles. Randy Hays, Board of Public Utilities, advised the amendment eliminates a paying agent being involved as it is not a requirement and would save funds. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion, as amended by substitute, carried. Voting “yes” -- all members of the governing body present. (#4012)

ORDINANCE - Amending Note 2 of the City of Cheyenne’s Sanitation Fee Schedule established by Ordinance No. 3982. Mr. Brown moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present. (#4013)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to NR-2 Neighborhood Residential – Medium Density for Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, between Canyon and

Ridge Roads). Debbie Hall expressed concerns with density level and parking for the area and questioned what type of development might be constructed on the property. Mayor Kaysen advised the agenda item concerns re-zoning of the property and to date final development plans are unknown. James Perrot Macneil suggested interested persons check on the ownership status of the property. Brandon Cammarata, Planning and Development Director, noted there was an expectation that the platting process will come before the governing body and any conditional use approval will go before the Board of Adjustment, stating public notice will be provided for those processes. Mayor Kaysen advised the motion carried. Voting “yes” -- all members of the governing body present. Pursuant to a point of order raised by Mr. Allen regarding whether there had been a motion on the floor for the item, Mayor Kaysen concurred that a motion had not been made and requested a procedural correction. Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Comment followed on a conceptual development plan that had been submitted by the developer and that further information may be received prior to final reading. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential – Established and MUR Mixed Use Residential Emphasis to MUR Mixed Use Residential Emphasis for the N1/2 of Lot 2, and all of Lots 3 & 4, Block 236, Original City (to be known as Keefe Cottages Subdivision), Cheyenne, Wyoming (located at the southeast corner of the intersection of Evans Avenue and E. 22nd Street). Mr. Allen moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential-Established to MUB Mixed-Use Business Emphasis for Lot 1, and the East 34-feet of Lot 2, Block 382, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of Pebrican Avenue and E. 17th Street). Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Comment followed that the applicant has shown a vested interest in maintaining the historical value of the neighborhood. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne voting “no”.

RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Mr. Brown moved to adopt, seconded by Mr. Luna. Mr. Shanor moved to divide the question to allow for a separate vote on the line item entry re-appropriating \$140,000 to the Fire Department budget, seconded by Mr. Allen. Motion to divide the question carried. Voting “yes” -- all members of the governing body present. Pursuant to a point of order raised by Mr. Allen pertaining to discussion from the public on the motion to divide the question, Mayor Kaysen advised a motion to divide the question was not debatable. Discussion followed on using non-recurring funds to pay for recurring expenditures; state funding sources; current state legislative discussions concerning Fire Plan A Pension program status; that funding of the \$140,000, due to the recent Fire union arbitration decision, should be utilized from another source; budgetary concerns, and allowing an administrative decision to be made on a different funding source. Mr. Brown raised a point of order requesting clarification of the motion on the floor with Mayor Kaysen advising the motion on the floor was to approve re-appropriating

\$140,000 from impact assistance funds to the Fire Department budget in response to the arbitration award. Discussion followed on possible other statewide fire arbitration decisions that may assist in identifying funding needs prior to the next fiscal year budget cycle, and source of funds proposed in the re-appropriation resolution (i.e. impact assistance funds). Mayor Kaysen verified the impact assistance funds are identified as part of the current general budget. Motion to approve the line item re-appropriating \$140,000 to the Fire Department budget failed. Voting “no” -- all members of the governing body present. Carol Intlekofer, City Clerk, advised, for clarification, that since approval of the line item re-appropriating the \$140,000 had failed, it would no longer be a part of the remaining main motion to adopt the resolution. Upon indication by Ms. Broyles that she wished to change her vote, Mayor Kaysen explained that once a vote has been taken and the result announced, a vote can not be changed. Mr. Allen raised a point of order suggesting that an option available to Ms. Broyles would be to bring the item up for reconsideration. Mayor Kaysen confirmed that the administration would need to identify another funding source relative to the \$140,000 amount and the arbitration decision. Main motion as revised (due to action taken as a result of the motion to divide the question) carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Broyles and Mayor Kaysen voting “no”. (#5556)

[CA] RESOLUTION - Designating local banks as depositories for municipal funds -- referred to Finance Committee (sponsor – Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Keefe Cottages Subdivision, a replat of the North ½ of Lot 2, and all of Lots 3 and 4, Block 236, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Evans Avenue and E. 22nd Street) – referred to Public Services Committee (sponsor – Mr. Allen).

[CA] RESOLUTION - Approving the five year Transit Development Plan for the Cheyenne Transit Program as a flexible planning tool for future improvements to the Cheyenne area transit program – referred to Finance Committee (sponsors – Mr. Brown, Ms. Broyles, Dr. Rinne and Mr. Valdez).

[CA] RESOLUTION - Authorizing the City of Cheyenne to grant an easement to the United States of America, Department of Energy, Western Area Power Administration, for the installation of buried fiber optic and other communications cables within Western Area Power Administration’s existing electric transmission line easement over a parcel of land owned by the City of Cheyenne, Wyoming – referred to Finance Committee (sponsor – Mr. Brown).

Master Agreement for Metropolitan Transportation Planning between the Wyoming Department of Transportation, Federal Highway Administration, and the Cheyenne Metropolitan Planning Organization. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to approve, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Luna voting “no”. (#6111)

[CA] Contract between the City of Cheyenne and WINhealth Partners for City Risk Sharing Program July 1, 2013 through June 30, 2014. Motion (per Consent Agenda) carried. (#6112)

[CA] Volleyball Officiating Agreement between the City of Cheyenne, Recreation Division, and Officials for Fun Club for adult City league volleyball officiating services. Motion (per Consent Agenda) carried. (#6113)

[CA] 2013- 2014 Collective Labor Agreement between the City of Cheyenne, Wyoming, and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters. Motion (per Consent Agenda) carried. (#6114)

[CA] Contract between the City of Cheyenne and FCI Construction of Wyoming LLC, for the pre-construction and construction phase services for the Cheyenne Public Safety Center (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried. (#6115)

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department, and Ayres Associates, for engineering design for the On - Street Bicycle System Implementation Project (1% Specific Purpose Sales & Use Tax, Grant funds). Motion (per Consent Agenda) carried (amount not to exceed \$40,437.00). (#6116)

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center for use of a 2006 Chevrolet El Dorado bus for services for Stride clients – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Frontier Refining, LLC, designating Holly Frontier Refining Corporation as the title sponsor of the annual Superday event for 2014, 2015 and 2016 – referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5921 between the City of Cheyenne and Reiman Corporation to reduce retainage for East Pershing Boulevard Reconstruction Project Phase IV (2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration Funding). Motion (per Consent Agenda) carried. (#5921)

[CA] Contract Modification No. 1 to Contract No. 5965 between the City of Cheyenne, Parks and Recreation Department, and DHM Design Corporation for additional design services for the Converse Softball Complex Renovation project (Menard property sale proceeds) – referred to Finance Committee.

[CA] Authorization to purchase traffic striping paint and beads under Wyoming Department of Transportation Bid #14-002TZ and #14-003TZ (2011-2014 1% Sales Tax) – referred to Finance Committee.

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Texas Roadhouse Holdings, LLC d/b/a/ Texas Roadhouse, 1931 Bluegrass Circle, Cheyenne, Wyoming (License currently held by Texas Roadhouse of Cheyenne, LLC d/b/a Texas Roadhouse, 1931 Bluegrass Circle, Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

Under other business, Mayor Kaysen announced that communication from Charter Communications (local cable services provider) had been received advising that due to the holiday work schedule, broadcasting of the evening's City Council meeting on Channel 19 would be later than usual and occur on January 1, 2014 at 6:00 p.m. and again on January 4, 2014 at 11:00 a.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:36 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
January 7, 2014